

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MARIE CAREW D/B/A/ HOLIDAY SHIPPING, *Complainant*

v.

MAERSK LINE A/S & JOHN DOES, *Respondents.*

DOCKET NO. 20-17

Served: July 20, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

REVISED SCHEDULING ORDER

Complainant Marie Carew d/b/a Holiday Shipping (“Holiday Shipping”) alleges that Respondent Maersk Line A/S (“Maersk”), violated section 41102(c) of the Shipping Act and Commission Rule 545.4(d). Maersk moved for a judgement on the pleadings, which was denied. Maersk was instructed to file its response to the complaint by April 28, 2021, and the parties were instructed to file a second joint status report with proposed schedule by May 10, 2021.

On May 13, 2021, a scheduling order was issued. On June 9, 2021, an order was issued regarding Complainant’s request for discovery (“Discovery Order”). The discovery order stated:

It appears that the parties have received conflicting information from their contacts in Nigeria regarding the process for obtaining shipments to Nigeria. The discovery requested appeared designed to better understand that issue, which may be helpful in resolving this proceeding. Clearing any misunderstanding as to what is required to release the shipments in question may help the parties resolve their dispute. Accordingly, the parties shall submit an affidavit and appendix of supporting evidence regarding the release of the containers at issue by July 8, 2021.

Discovery Order at 3.

On July 7, 2021, the parties filed their required affidavits. Holiday Shipping also filed a number of exhibits, including exhibit D labeled “Settlement proposal.” Maersk sent an email noting that “Complainant’s Exhibit D and D-1 include the same documents which, we were advised by yours of March 5, 2021, would not be docketed, inasmuch as they consist of settlement communications.” July 7, 2021, 6:00 pm email to the Secretary. The filings were provided to the Office of Administrative Law Judges for disposition.

While settlement discussions are generally not admissible, upon review, these exhibits are from 2018, prior to filing the current proceeding, and attach a number of documents which may be relevant to this proceeding. Accordingly, all of the exhibits attached to Holiday Shipping’s affidavit filed on July 7, 2021, will be permitted.

Holiday Shipping initially filed this complaint against Maersk and “John Does” seeking release of the containers. Holiday Shipping submitted an affidavit from its owner indicating that she “reach[ed] out to the clearing agents in Nigeria and the consignees [and her efforts] have resulted in limited successes as the consignees have resulted in either legal actions or abandon the consignment. As such, Complainant cannot procure sworn testimonies from the clearing agents and consignees.” Affidavit at 2.

Maersk’s declaration states that as “the sea waybills are non-negotiable, presentation of the original is not required by MAERSK in order to take receipt of the goods; the named consignee is entitled to possession;” and that “MAERSK has not asserted any lien on the cargoes or otherwise made any attempt to impede their release to the consignees.” Declaration at 2.

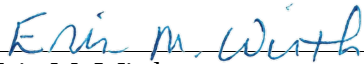
In a Commission proceeding, the burden of proof is on the Complainant. While Holiday Shipping says that Maersk needs to do something to have the containers released, Maersk says that it does not. To overcome the burden of proof, Complainant would need to have evidence, likely from the destination port, supporting its allegations. Before spending the resources to brief this proceeding, Complainant should be advised that without sufficient evidence, the claim cannot be successful.

Holiday Shipping’s decision to file this claim against “John Does” suggests that it believes other parties may be at fault. In addition, Holiday Shipping’s affidavit suggests that some consignees have abandoned the shipments and that Holiday Shipping is having trouble obtaining accurate information from their contacts at the destination port. If other parties at the destination port, such as Nigerian customs officials, are the ones holding the containers, it may be difficult to establish that Maersk is responsible. In addition, the undersigned has no jurisdiction over officials in Nigeria and cannot order them to release containers.

As discussed in previous orders, an interpretive rule requires five elements in order to establish a successful claim for a violation of section 41102(c), including that the “claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis.” 46 C.F.R. § 545.4. The parties are also reminded that under certain circumstances, attorney fees may be awarded to the prevailing party. 46 U.S.C. § 41305(e); *see also* Docket No. 15-06.

The parties should review the requirements for filing briefs and presenting their case outlined in the scheduling order issued on May 13, 2021. The parties must comply with the following deadlines:

August 23, 2021	Complainant files brief with proposed findings of fact and appendix.
September 14, 2021	Respondent files opposition brief with proposed findings of fact and responses to Complainant’s proposed findings of fact, and appendix.
September 29, 2021	Complainant files reply brief with responses to Respondent’s proposed findings of fact.


Erin M. Wirth
Chief Administrative Law Judge